

25CHCV00685 25CHCV00685

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 25CHCV00685 Hearing Date: July 8, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JULY 7, 2026

MOTION TO VACATE/SET ASIDE

DEFAULT

Los Angeles Superior Court Case # 25CHCV00685

Motion

Filed: 4/24/26

MOVING PARTY: Defendant/Cross-Defendant Melanie Ann

Steven, in pro per ("Moving Defendant")

RESPONDING PARTY: None

NOTICE:

OK

RELIEF

REQUESTED: An

order vacating the default entered against Moving Defendant on 3/17/26 and the default judgment entered against Moving Defendant on 4/7/26 on Plaintiff's complaint.

TENTATIVE

RULING: The
motion is denied.

BACKGROUND

This is a personal injury action in which Plaintiff Arslan Sibgatullin, a minor, by and through his Guardian Ad Litem Alena Sibgatullin, alleges that on 11/28/24, while lawfully at premises owned and operated by defendants FPI Management, Inc. and Waterstone Owner LP (collectively, "Settling Defendants"), he was injured when "suddenly and without warning, Plaintiff was bitten and/or attacked by" Moving Defendant's dog. (Compl. p. 6.)

On 2/25/25, Plaintiff filed his complaint, alleging against Defendants the following causes of action: (1) General Negligence; (2) Premises Liability; and (3) Strict Liability. On 7/8/25, Settling Defendants filed their answer and cross-complaint, alleging against Moving Defendant the following causes of action: (1) Indemnity; (2) Apportionment of Fault; (3) Comparative Fault; and (4) Declaratory Relief.

On 3/17/26, default was entered against Moving Defendant on Plaintiff's complaint. On 4/1/26, Plaintiff filed a notice of conditional settlement of the entire case. On 4/7/26, a default judgment was entered against Moving Defendant on Plaintiff's complaint.

On 4/24/26, Moving Defendant filed the instant motion. No opposition has been filed to date.

ANALYSIS

"The court may, upon any terms as
may be just, relieve a party or his or her legal representative from a
judgment, dismissal, order, or other proceeding taken against him or her
through his or her mistake, inadvertence, surprise, or excusable neglect.
Application for this relief shall be accompanied by a copy of the answer or

other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc. § 473, subd. (b).)

Here, Moving Defendant asserts that on or about 11/7/25, she was served with the complaint and summons, and on 12/2/25, she contacted Plaintiff's counsel, Erin M. Davis, to explain that she is not a proper defendant in the action, but did not receive a response. (Decl. of Melanie Ann Steven. ¶¶ 2–4.) However, the record reflects that Moving Defendant was personally served with Plaintiff's complaint and summons on 12/23/25. (3/4/26 POS.) The record further reflects that Moving Defendant was served with Settling Defendants' cross-complaint via substitute service on 11/9/25, and that Ms. Davis is counsel of record for Settling Defendants. (11/24/25 POS.)

To the extent that Moving Defendant seeks to vacate the entry of default and default judgment against her on Plaintiff's complaint, she has failed to sufficiently argue as such. To the extent that Moving Defendant seeks to vacate any entry of default against her on Settling Defendants' cross-complaint against her, no such default has been taken. The Court further notes that while the motion is unopposed, Moving Defendant has failed to file a proof of service showing that the motion was served on the other parties in the action. (Cal. Rules of Court, r. 1.21.) Furthermore, Moving Defendant has failed to attached a copy of her proposed answer. (Code Civ. Proc. § 473, subd. (b).)

Based on the foregoing, the Court denies Moving Defendant's motion to set aside the default entered against her on 3/17/26 and the default judgment entered against her on 4/7/26, on Plaintiff's complaint.

CONCLUSION

The motion is denied.